

More on dual-licensing of digital OA books

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This post **follows-on from**: "[What is actually licensed in print/digital dual-licensed books?](#)"



Image: An image of a typewriter printing the words Copyright Claim (Markus Winkler on Unsplash)

Following up on [yesterday's post](#), I received an email this morning from Andrew Johnson, who is the Scholarly Communications Librarian (Copyright & Licensing) at Sheffield University in the UK and so seems to know his stuff on this turf. With his permission, for which I am extremely grateful, I reproduce that message, as it answers some of the questions I posed:

So what is licensed? Well, not what a lot of people expect, because technically what is licensed are the restricted acts of reproduction and distribution. The work is protected by copyright, and the BY-NC-ND licence applies - assuming the University publisher applies it to the original work you submitted and transferred to them, in exchange for a contractual agreement to publish. That licence applies to “the work”, but really it is reproduction and distribution rights that are licensed. Off topic, the application of CC licences to “works” rather than “copies” is to me arguably the biggest interpretational difference between CC and open software licences.

You rightly point out US law applies to your contract, but local law determines how the CC licence applies. So in the US, reproduction and distribution rights cover - in CC licence legal code terms - what is spread over three rights in the UK, as we have the right of communication here. So in UK use, three restricted acts are licensed. CC licences apply to copyright-relevant acts in the territory where the act occurs. In the UK those three restricted acts are licensed as they apply to the work you created. Any copying that doesn't alter the original intellectual creation you supplied in making it is permitted by the licence, all formats and media. So format shifting from website to pdf to any other text document, or copying long-hand to paper, or photocopying from a print copy of the book - all licensed, as they are the same restricted acts with the same work.

Your chapter discusses how sharing e.g. medical articles could have direct health benefit to life and be used by pirates as justification for shadow library copying, and that rhymed for me with how copyright protects such works more “thinly” than some works in the humanities and arts, where more creative or expressive creation has stronger protection against substantially similar copying - even where it is appreciation or critique. From a rights justification view it is interesting that there is on one hand a value judgement around how essential such works are in the hierarchy of needs, but in legal terms they are the most protected due to being deemed the most essential to promote future creativity for the benefit of all (albeit less so in personality-rights cultural traditions maybe).

So, a huge thanks to Andrew for writing on this. It's lovely to hear from people who are working in this space and even better when they are truly knowledgeable and willing to engage.